



POLICE DEPARTMENT

August 7, 2025

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In the Matter of the Charges and Specifications :

- against - :

Police Officer Jonathan Pesce :

Tax Registry No. 962686 :

105 Precinct :

Case No.

C-032931

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At: Police Headquarters
One Police Plaza
New York, NY 10038

Before: Honorable Anne E. Stone
Assistant Deputy Commissioner Trials

APPEARANCES:

For the CCRB-APU: Rebecca Hausner, Esq.
Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

For the Respondent: John Tynan, Esq.
Worth, London & Martinez, LLP
111 John Street, Suite 640
New York, NY 10038

To:

HONORABLE JESSICA S. TISCH
POLICE COMMISSIONER
ONE POLICE PLAZA
NEW YORK, NY 10038

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CHARGES AND SPECIFICATIONS

1. Police Officer Jonathan Pesce, on or about September 3, 2023, at approximately 1958 hours, while assigned to the 105 Precinct and on duty, in the vicinity of 231st Street and Merrick Boulevard, Queens County, New York, abused his authority as a member of the New York City Police Department, in that he failed to provide Complainant with a business card without sufficient legal authority.

A.G. 304-11

COMPLIANCE WITH NEW
YORK CITY RIGHT TO
KNOW ACT

REPORT AND RECOMMENDATION

The above-named member of the Department appeared before me on July 17, 2025.

Respondent, through his counsel, entered a plea of Not Guilty to the subject charges. The CCRB introduced into evidence the hearsay statement that Complainant made to their investigators, as well as body-worn camera footage of the incident. Respondent testified on his own behalf. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review. Having evaluated all of the evidence in this matter, I find Respondent Guilty and recommend the forfeiture of three (3) vacation days.

The facts of this case are largely undisputed and are summarized below.

On September 3, 2023, at approximately 2000 hours, Complainant was in the driver's seat of a Porsche Panamera parked in a bus stop with the engine running. Respondent and Police Officer Hananel Wanunu pulled their marked Radio Motor Patrol ("RMP") vehicle behind the Porsche. The license plate on the rear of Complainant's car was covered in plastic which obscured the information written on it. Respondent and Police Officer Wanunu approached Complainant and Respondent requested his driver's license, registration, and proof of insurance which Complainant provided. During this conversation, Complainant informed Respondent that

he had been stopped the night before by different police officers who discovered the vehicle registration was valid. Respondent informed Complainant that the plastic cover over his license plate made it difficult to read the information. Respondent and Police Officer Wanunu returned to the RMP and ran the license plate number, which they believed was from Pennsylvania, in the NYPD's Domain Awareness System ("DAS"), which yielded no results. (CCRB Ex. 1, *Respondent's body-worn camera footage*, at 00:55-02:15, 02:50-04:10; Tr. 22-25, 30, 36)

Respondent and Police Officer Wanunu approached Complainant's car again, and Respondent asked Complainant to "shut off the car and hand me the keys, please." Police Officer Wanunu asked Complainant which state issued the temporary registration and Complainant responded "Arizona." A second DAS search revealed that Complainant's Porsche was legally registered in Arizona. Police Officer Wanunu told Complainant that he was "correct" and the registration was legitimate. Police Officer Wanunu then said, "all right man, that's it, we're done, have a safe night" and started walking back to the RMP with Respondent. Complainant called out, "Can I have my I.D.?" Police Officer Wanunu asked Respondent to get the paperwork and continued talking to Complainant. Respondent got back into the RMP and conducted further checks of Complainant's driver's license and registration, for approximately two minutes, until Police Officer Wanunu opened the passenger door, asked for Complainant's driver's license, and eventually returned it to Complainant. No summonses were issued, and Complainant was not arrested. Neither Respondent nor Police Officer Wanunu offered Complainant a business card, and Complainant did not request their identifying information or cards. (CCRB Ex. 1 at 04:34-04:40, 07:45-10:21; CCRB Ex. 2, *Police Officer Wanunu's body-worn camera footage*, at 04:40-04:45, 06:30-07:55; Tr. 25-28, 38-39)

Counsel for CCRB contacted Complainant, who declined to testify at trial. Instead, the CCRB introduced into evidence a recording of a telephone interview conducted by a CCRB investigator with Complainant on September 6, 2023, along with the accompanying transcript. (CCRB Exs. 3A and 3B)

During the interview, Complainant explained to the investigator that before the incident with Respondent, he had previously been stopped twice for having a cover over his temporary license plate. The first time was on July 21, 2023, and the second occurred at 0100 hours on the same day, at the same location, as the vehicle stop conducted by Respondent and his partner. (CCRB Ex. 3B at 4-5, 10, 28, 33, 39)

Complainant recalled that at approximately 1900 hours on September 3, 2023, Respondent and his partner approached his car in the bus stop on Merrick Boulevard. He told the officers that he was waiting for a friend and questioned why they needed his license and registration but eventually gave them the documents. He acknowledged that he did not receive a summons at the conclusion of the interaction. When asked, Complainant told the investigator that the officers did not offer him a business card. (CCRB Ex. 3B at 32, 39, 41-43, 66)

Respondent took the stand and testified that he drove past Complainant's vehicle in the bus lane and pulled in behind it with the turret lights activated. He noticed the plastic covering the temporary license plate and recalled telling Complainant that was the reason for the approach. Respondent acknowledged that Complainant informed him that he had been stopped the night before and the car was properly registered. Although the initial DAS check returned no results, Respondent averred that he "had no reason to believe [the car] was stolen." Respondent contended that although he asked Complainant to turn the car off and hand him the keys, Complainant was still free to leave the scene. (Tr. 22-25, 28, 38-39)

Respondent explained that he had been a Field Training Officer in his precinct and is familiar with Administrative Guide 304-11, which sets forth when officers are required to offer members of the public a business card. Respondent stated that he did not offer Complainant a business card because he “did not take any of the law enforcement activities” listed in A.G. 304-11. He denied asking Complainant any accusatory questions or developing reasonable suspicion of criminal activity. (Tr. 19, 40-42)

ANALYSIS

Respondent is charged with a single specification, alleging that he failed to offer Complainant a business card. Administrative Guide 304-11 requires officers to offer their NYPD-issued business cards to members of the public at the conclusion of certain “Law Enforcement Activities” unless an arrest is made or a summons issued. The specified interactions include Level 2 Encounters, which are noncustodial questioning of individuals suspected of criminal activity, and Level 3 Encounters, where an officer has an individualized, reasonable suspicion of a crime and where a reasonable person would not feel free to end the encounter.

Respondent conceded that he did not offer Complainant a business card.¹ Thus, the question before the Tribunal is whether Respondent engaged in any of the Law Enforcement Activities set forth in A.G. 304-11 during his interaction with Complainant. For the reasons set forth below, I find that he did.

Patrol Guide 212-11, Investigative Encounters, defines a Level 3 Encounter as “**any** encounter between a civilian and a uniformed member of the service in which a reasonable person would not feel free to disregard the officer and walk away.” (emphasis added)

¹ It is undisputed that Complainant did not request Respondent’s business card, his name, or his shield number. If he had, Respondent would have been required to provide Complainant with a business card.

The parties do not dispute that Respondent had the authority to issue Complainant summonses for parking in a bus stop and improperly covering his license plate. It is also undisputed that when Respondent and Police Officer Wanunu initially ran the plate, they got no results. Although Respondent testified that he had no reason to believe the Porsche was stolen, when he returned to the car the second time, he asked Complainant to turn off the engine and surrender the keys. Making that request in conjunction with the negative search results regarding the registration is an indication that Respondent and his partner had legitimate concerns regarding the vehicle which required more investigation. Until those suspicions were addressed, Complainant was not free to leave.

Shortly thereafter, Police Officer Wanunu, with Respondent standing next to him, told Complainant that his car was properly registered and that the car stop was concluded. The United States Supreme Court has held that with regards to the investigation of traffic infractions, “[n]ormally, the stop ends when the police have no further need to control the scene, and inform the driver and passengers they are free to leave.” (*Arizona v. Johnson*, 555 U.S. 323, 333 [2009]). However, instead of walking back to the RMP, and immediately returning with Complainant’s driver’s license and other documents, Respondent sat down in the driver’s seat and ran further checks on his phone.

It can be inferred from these actions that Complainant did not feel free to drive away, particularly after being told to turn off his car. Respondent’s actions essentially converted the incident from a traffic stop to a Level 3 Stop as defined in the Patrol Guide. As a result, Respondent was required to offer Complainant a business card. Accordingly, I find Respondent Guilty of the sole specification in this matter.

PENALTY

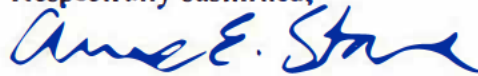
In order to determine an appropriate penalty, this tribunal, guided by the Department's Disciplinary System Penalty Guidelines, considered all relevant facts and circumstances, including potential aggravating and mitigating factors established in the record. Respondent's employment history also was examined. See 38 RCNY § 15-07. Information from his personnel record that was considered in making this penalty recommendation is contained in an attached memorandum. Respondent was appointed to the Department on October 11, 2016, and has no formal disciplinary history.

With regard to the failure to provide a business card as required by the Right to Know Act, the Department's Disciplinary System Penalty Guidelines ("Matrix") provide for a mitigated penalty of training and a presumptive penalty of the forfeiture of three (3) vacation days. (Matrix at p. 28) On the stand, Respondent explained that he did not offer Complainant a business card because he did not believe the interaction was one of the "Law Enforcement Actions" that required him to. However, Respondent should have realized that a reasonable person would not feel free to leave after being told to turn off his vehicle and while a police officer had possession of his identification. Under the circumstances Respondent was required to offer Complainant a business card. For these reasons, no mitigation is warranted and I recommend the presumptive penalty of three (3) vacation days.

APPROVED

SEP 02 2025
JESSICA S. FISCH
POLICE COMMISSIONER

Respectfully submitted,



Anne E. Stone

Assistant Deputy Commissioner Trials



POLICE DEPARTMENT CITY OF NEW YORK

From: Assistant Deputy Commissioner – Trials

To: Police Commissioner

Subject: SUMMARY OF EMPLOYMENT RECORD
POLICE OFFICER JONATHAN PESCE
TAX REGISTRY NO. 962686
DISCIPLINARY CASE NO. C-032931

Respondent was appointed to the Department on October 11, 2016. On his three most recent annual performance evaluations, he was rated "Exceptional" for 2022, 2023, and 2024. He has been awarded one medal for Meritorious Police Duty and five medals for Excellent Police Duty.

Respondent has no formal disciplinary history.

For your consideration.

Anne E. Stone
Assistant Deputy Commissioner Trials